

26PR00217 Conservatorship of Ruth Ann Whitaker

County: santa-barbara

Division: Conservatorship

Hearing date: 2026-06-24

Motion: Petition for Conservatorship of the Person and Estate

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Tentative Ruling: Conservatorship of Ruth Ann Whitaker

Case Number

26PR00217

Case Type

Conservatorship

Hearing Date / Time

Wed, 06/24/2026 - 09:30

Nature of Proceedings

Petition for Conservatorship of the Person and Estate

Tentative Ruling

Probate Notes:

Appearances required.

On April 23, 2026, Robin McPeck filed a temporary and a general Petition to be appointed conservator over the proposed conservatee's person and estate. The Petition for Temporary Conservatorship was continued to June 24, 2026, which makes the petition now moot. The Petition for General Conservatorship received two objections, placing the matter at issue and requiring evidentiary hearing to resolve.

The following must be submitted in order for the Petition to procedurally advance to adjudication:

Proof of Personal Service of Summons. In a conservatorship proceeding, jurisdiction is obtained through personal service of a citation and a copy of the petition for conservatorship upon the proposed conservatee, 15 days before the hearing. (Prob. Code, § 1824; Conservatorship of Jones (1986) 188 CA3d 306, 309.) No proof that citation has been personally served on the proposed Conservatee is on file. The proof of service filed on May 11, 2026, shows that the person served was Robin McPeck (the Petitioner), not Ruth Ann Whitaker, the proposed conservatee. You cannot effectuate service on the proposed conservatee by serving yourself.

Confidential Declaration on Medical Ability to Attend Hearing (GC-325) – As of January 1, 2025, the ability of the proposed conservatee to attend the hearing will be determined on evidence submitted on Judicial Counsel form GC-325. This form was adopted for mandatory use as of January 1, 2025. This form must be filed, or the proposed conservatee will be expected to attend the hearing.

Proposed Order Appointing Conservator (GC-340). “Proposed orders or judgments shall be submitted on or before noon at least five court days prior to the hearing. Failure to submit a timely proposed order may delay the hearing or entry of the order.” (Local Rule 1724.)

Proposed Letters of Conservatorship (GC-350). “Proposed orders or judgments shall be submitted on or before noon at least five court days prior to the hearing. Failure to submit a timely proposed order may delay the hearing or entry of the order.” (Local Rule 1724.)

The proposed conservatee is expected to attend the hearing, unless a Confidential Declaration on Medical Ability to Attend Hearing (GC-325) is filed and shows a medical inability to attend. (Prob. Code, § 1825.) (Prob. Code, § 1825(a)(2)[medical inability].)

Judges

Judge Denise M. Hippach

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